

with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,165.10, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,094.

Costs are \$583.60.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,654.71.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L25-02024
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PANAS CHHANTYAL

***HEARING ON MOTION IN RE:**

FILED BY: CHHANTYAL, PANAS

TENTATIVE RULING:

Counsel for Defendant filed a motion to be relieved.

Counsel provided notice to the defendant.

Counsel cites a breakdown in the relationship, but the court will have to hear more, in an in camera examination, on 4/14/26, at 9am.

5. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES

***HEARING ON MOTION IN RE:
FILED BY: KILLARNEY PROPERTIES**

TENTATIVE RULING:

Background

Defendant filed a Motion to set aside the Entry of Default, claiming that there was a lack of actual notice, under Section 473.5 of the CCP. Specifically, Defendant claims that service of process was improper because Plaintiff served the Summons and Complaint on a third party who was not an agent of Defendant.

Entry of Default was filed on 9/15/25.

Notice of this Motion was timely filed on Plaintiff.

Plaintiff filed a response.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process.

A plaintiff can serve an individual defendant by substitute service. *CCP 415.20(a)*. This enables the plaintiff to serve the summons and complaint at the individual's office, with a person who is apparently in charge. There are two additional requirements, however: The plaintiff must, after service at the office, mail a copy of the documents to the same location; and, preceding this service, the plaintiff must have exercised diligence in attempting to personally serve the defendant. *CCP 415.20(a) and (b)*.

Service can occur on an agent of the defendant, but only if the defendant has designated a particular person to receive service of process. *CCP 416.90*.

Finally, service on a corporation can be completed by serving a designated agent, or a person acting in an official capacity for the corporation, such as an executive officer or secretary. *CCP 416.10*.

If the service was done by a registered process server, then there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Courts strictly construe *actual knowledge* "with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits." *Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 39.

Courts must interpret Section 473 in a similar manner, construing the statute liberally in order “to prevent injustice and to enable litigants to have their case heard on the merits. *Frank E. Beckett Co. v. Bobbit* (1960) 180 Cal. App. 2d 921, 924. “Even in a case where the showing under section 473 is not strong, or where there is any doubt as to setting aside of a default, such doubt should be resolved in favor of the application.” *Van Dyke v. MacMillan* (1958) 162 Cal. App.2d 594, 598. This court does not see why the spirit of the application of Section 473 would be any different than that for Section 473.5

In the instant matter, the court notes, first, that purported services by Plaintiff, of both the Complaint and Amended Complaint (proofs of which were filed 7/2/26 and 7/14/26, respectively), were not effected by a registered process server, so the burden is on the Plaintiff to demonstrate proper service of process. Also, service, both times, was on the same person, Ms. Castillo; and neither time was mail service ever involved.

Ms. Castillo, in her declaration attached to the Defendant’s moving papers, indicates that she is neither an employee nor an agent of the Defendant.

Next, Ms. Castillo is not a named defendant, so the methods of substitute service and service on a corporation are placed in issue. With respect to substitute service, even assuming Ms. Castillo was in charge of the office of Defendant where she was served, Plaintiff did not follow up that particular service with mail service, and Plaintiff never provided a declaration demonstrating their efforts to secure personal service of defendant.

Assuming the Defendant is a corporation, then service must be on an officer, secretary or designated agent. The only credible evidence in front of the court is that Ms. Castillo was not acting in any of those capacities (evidence that also cuts against any argument that Ms. Castillo was an agent for the Defendant as an individual, rather than corporation), and to the extent there is any doubt about the credibility of Ms. Castillo, the court resolves this doubt in favor of Defendant.

Finally, for the sake of argument, assuming Ms. Castillo was an appropriate agent or official of the Defendant, her declaration indicates she was not served with the Summons, and the Complaint had the incorrect case number. To the extent that there is conflicting evidence of this fact in the form of the proof of service indicating service of the Summons – thus suggesting doubt about Ms. Castillo’s declaration in this respect - the court resolves this doubt in favor of the Defendant.

In conclusion, the finds that Defendant was not given actual notice of service of process,

and the court will set aside the Entry of Default.

Disposition

Defendant's Motion to Set Aside is granted.

Defendant to file Answer within 10 days.

Defendant to file Order.

6. 9:00 AM CASE NUMBER: L25-03768
CASE NAME: LEYTON USA, INC. VS. HSG RESTAURANT GROUP
*HEARING ON MOTION IN RE: TO STRIKE ANSWER TO COMPLAINT
FILED BY: LEYTON USA, INC.

TENTATIVE RULING:

Background

Plaintiff has filed a Motion to Strike Defendant's Answer, on the ground that Defendant, a corporation, filed its answer *in propria persona*.

Plaintiff attached an exhibit reflected an attempt to meet and confer with the Defendant.

The Motion was properly noticed.

The Motion is unopposed.

Analysis

A court can strike any portion of a pleading that is not drawn or filed in conformity with the laws of the state. *CCP Section 436(b)*.

A corporation cannot appear in a civil action through a corporate officer or employee who is not an attorney. *Merco v. Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724.

Courts must liberally grant parties the opportunity to amend a pleading in the event the entire pleading is stricken. *CCP 472a(d)*, *Vaccaro v. Kaiman* (1998) 63 CA4th 761, 768-769. "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." *Id.*

In the instant matter, the Defendant's Answer does not reflect that it was filed by an attorney. Though the Answer is signed, the caption of the Answer, where attorneys must indicate that they are acting on behalf of a party, is blank. The court is left to infer that the corporation is self-represented, which is not permitted.